

Compulsory Education Law of the People's Republic of China (2018 Amendment) [Effective]

中华人民共和国义务教育法(2018修正) [现行有效]

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Compulsory Education Law of the People's Republic of China

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Contents

Chapter I General Provisions

Chapter II Students

Chapter III Schools

Chapter IV Teachers

Chapter V Education and Teaching

Chapter VI Guarantee of Operating Funds

Chapter VII Legal Liabilities

Chapter VIII Supplementary Provisions

Chapter I General Provisions

中华人民共和国义务教育法

(1986年4月12日第六届全国人民代表大会第四次会议通过 2006年6月29日第十届全国人民代表大会常务委员会第二十二次会议修订 根据2015年4月24日第十二届全国人民代表大会常务委员会第十四次会议《[关于修改〈中华人民共和国义务教育法〉等五部法律的决定](#)》第一次修正 根据2018年12月29日第十三届全国人民代表大会常务委员会第七次会议《[关于修改〈中华人民共和国产品质量法〉等五部法律的决定](#)》第二次修正)

目 录

第一章 总 则

第二章 学 生

第三章 学 校

第四章 教 师

第五章 教育教学

第六章 经费保障

第七章 法律责任

第八章 附 则

第一章 总 则

Article 1 For the purpose of guaranteeing the right to compulsory education of school-age children and adolescents, ensuring the implementation of the compulsory education policy and promoting the quality of the whole nation, this Law was formulated in accordance with [the Constitution](#) and [the Education Law](#).

第一条 为了保障适龄儿童、少年接受义务教育的权利, 保证义务教育的实施, 提高全民族素质, 根据[宪法](#)和[教育法](#), 制定本法。



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Article 2 The state adopts the system of 9-year compulsory education.

The compulsory education is the education which is implemented uniformly by the state and shall be received by all school-age children and adolescents. It is a public welfare cause that shall be guaranteed by the state.

No tuition or miscellaneous fee may be charged in the implementation of compulsory education.

The state shall establish a compulsory education operating funds guarantee mechanism to ensure the implementation of the compulsory education system.

Article 3 In compulsory education, the state policy on education shall be implemented and quality-oriented education shall be carried out to improve the education quality and enable children and adolescents to achieve all-round development - morally, intellectually and physically - so as to lay the foundation for cultivating well-educated and self-disciplined builders of socialism with high ideals and moral integrity.

Article 4 All children and adolescents who have the nationality of the People's Republic of China and have reached the school age shall have equal right and have the obligation to receive compulsory education, regardless of the gender, nationality, race, status of family property, religion, belief, etc.

Article 5 The people's governments at all levels and their relevant departments shall perform all functions as described by this Law and shall ensure the right to compulsory education of all school-age children and adolescents.

The parents or other statutory guardians of school-age children and adolescents shall ensure that school-age children and adolescents go to school to receive and complete the compulsory education.

The schools lawfully carrying out compulsory education shall complete the educational and teaching tasks as required and ensure the educational and teaching quality.

Social organizations and individuals shall create a good environment for the school-age children and adolescents to receive compulsory education.

Article 6 The State Council and the local people's governments at the county level and above shall reasonably allocate the educational resources, promote the balanced development of compulsory education, improve the conditions of weak schools, take measures to ensure the implementation of the compulsory education policy in rural areas and areas of ethnic minorities, and guarantee the school-age children and adolescents from families with financial difficulties and disabled school-age children and adolescents to receive compulsory education.

The state shall organize and encourage the economically developed areas to provide aid to the economically under-developed areas in the implementation of the compulsory education policy.

Article 7 The compulsory education shall be under the leadership of the State Council, be carried out under the plans of the provinces, autonomous regions, municipalities directly under the Central Government, and be mainly administered by the people's governments at the county level.

The education administrative departments of the people's governments at the county level or above shall be responsible for the implementation of the compulsory education policy. Other relevant departments of the people's governments at the county level or above shall, within the scope of their respective functions, be responsible for the implementation of the compulsory education policy.

Article 8 An education supervisory institution of the people's government shall supervise the compliance with the laws and regulations in the compulsory education work, the educational and teaching quality as well as the status of balanced development of compulsory education, and shall issue supervisory reports to the general public.

Article 9 Any social organization or individual may expose or complain any violation of this Law to the relevant state organ.

In the event that this Law is grossly violated, the implementation of the compulsory education policy is hampered and bad consequences are caused to the society, the liable persons-in-charge of the people's government or of the education administrative department of the people's government shall resign from their posts due to their mistakes.

Article 10 The social organizations and individuals who have made outstanding contributions in the implementation of the compulsory education policy shall be commended and awarded by the people's governments at all levels and their relevant departments.

Chapter II Students

第二条 国家实行九年义务教育制度。

义务教育是国家统一实施的所有适龄儿童、少年必须接受的教育，是国家必须予以保障的公益性事业。

实施义务教育，不收学费、杂费。

国家建立义务教育经费保障机制，保证义务教育制度实施。

第三条 义务教育必须贯彻国家的教育方针，实施素质教育，提高教育质量，使适龄儿童、少年在品德、智力、体质等方面全面发展，为培养有理想、有道德、有文化、有纪律的社会主义建设者和接班人奠定基础。

第四条 凡具有中华人民共和国国籍的适龄儿童、少年，不分性别、民族、种族、家庭财产状况、宗教信仰等，依法享有平等接受义务教育的权利，并履行接受义务教育的义务。

第五条 各级人民政府及其有关部门应当履行本法规定的各项职责，保障适龄儿童、少年接受义务教育的权利。

适龄儿童、少年的父母或者其他法定监护人应当依法保证其按时入学接受并完成义务教育。

依法实施义务教育的学校应当按照规定标准完成教育教学任务，保证教育教学质量。

社会组织和个人应当为适龄儿童、少年接受义务教育创造良好的环境。

第六条 国务院和县级以上地方人民政府应当合理配置教育资源，促进义务教育均衡发展，改善薄弱学校的办学条件，并采取措施，保障农村地区、民族地区实施义务教育，保障家庭经济困难的和残疾的适龄儿童、少年接受义务教育。

国家组织和鼓励经济发达地区支援经济欠发达地区实施义务教育。

第七条 义务教育实行国务院领导，省、自治区、直辖市人民政府统筹规划实施，县级人民政府为主管理的体制。

县级以上人民政府教育行政部门具体负责义务教育实施工作；县级以上人民政府其他有关部门在各自的职责范围内负责义务教育实施工作。

第八条 人民政府教育督导机构对义务教育工作执行法律法规情况、教育教学质量以及义务教育均衡发展状况等进行督导，督导报告向社会公布。

第九条 任何社会组织或者个人有权对违反本法的行为向有关国家机关提出检举或者控告。

发生违反本法的重大事件，妨碍义务教育实施，造成重大社会影响的，负有领导责任的人民政府或者人民政府教育行政部门负责人应当引咎辞职。

第十条 对在义务教育实施工作中做出突出贡献的社会组织和个人，各级人民政府及其有关部门按照有关规定给予表彰、奖励。



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第二章 学 生

Article 11 Any child who has attained to the age of 6, his (her) parents or other statutory guardians shall have him (her) enrolled in school to finish the compulsory education. For the children in those areas where it is not possible, the initial time of schooling may be postponed to 7 years old.

If, on account of illness or other special circumstances, where a school-age child or adolescent needs to postpone his (her) enrollment or suspend his (her) schooling, his (her) parents or other statutory guardians shall file an application with the education administrative department of the local people's government of the township, town or county for approval.

Article 12 The school-age children and adolescents shall go to school without taking any examination. The local people's governments at all levels shall ensure that the school-age children and adolescents are enrolled in the schools near the permanent residences of the school-age children and adolescents.

For a school-age child and adolescent whose parents are working or dwelling at a place other than their permanent residence, if he (she) receives compulsory education at the place where his (her) parents or other statutory guardians are working or dwelling, the local people's government shall provide him (her) with equal conditions for receiving compulsory education. The concrete measures shall be formulated by the provinces, autonomous regions and municipalities directly under the Central Government.

An education administrative departments of the people's government at the county level shall guarantee the right of the servicemen's children to compulsory education within its administrative area.

Article 13 The education administrative departments of the people's governments at the county level, and the people's governments of the townships and towns shall organize and urge school-age children and adolescents to go to school, help to solve their difficulties in receiving compulsory education and take measures to prevent them from discontinuing their schooling.

The residents' committees and villagers' committees shall help the government to do well in urging school-age children and adolescents to go to school.

Article 14 It is forbidden for any employing entity to employ any school-age children and adolescents who shall be receiving compulsory education.

For the social organizations which enroll school-age children and adolescents for professional training of art and literature, physical education, etc., they shall ensure that the children and adolescents enrolled therein receive compulsory education. If they carry out compulsory education by themselves, they shall be subject to approval of the education administrative departments of the people's governments at the county level.

Chapter III Schools

Article 15 The local people's governments at or above the county level shall, on the basis of the factors such as the number and distribution of the school-age children and adolescents dwelling in their respective administrative area, formulate and adjust the plans on the setup of schools in accordance with the relevant provisions of the state. Where a newly established residential area needs to set up a school, it shall build it along with the construction of the residential area.

Article 16 The construction of schools shall conform to the standards of the state on running schools, shall meet the educational and teaching needs, shall meet the state's requirements for the selection of sites and the construction standards so as to ensure the safety of the students and the staff.

Article 17 Where necessary, the people's government at the county level may set up boarding schools so as to ensure that the school-age children and adolescents, who are dwelling in scattered areas, to receive compulsory education.

Article 18 The education administrative department of the State Council and the people's governments of the provinces, autonomous regions, municipalities directly under the Central Government shall, where necessary, set up schools (classes) in economically developed areas so as to enroll school-age children and adolescents of ethnic minorities.

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第十一条 凡年满六周岁的儿童，其父母或者其他法定监护人应当送其入学接受并完成义务教育；条件不具备的地区儿童，可以推迟到七周岁。

适龄儿童、少年因身体状况需要延缓入学或者休学的，其父母或者其他法定监护人应当提出申请，由当地乡镇人民政府或者县级人民政府教育行政部门批准。

第十二条 适龄儿童、少年免试入学。地方各级人民政府应当保障适龄儿童、少年在户籍所在地学校就近入学。

父母或者其他法定监护人在非户籍所在地工作或者居住的适龄儿童、少年，在其父母或者其他法定监护人工作或者居住地接受义务教育的，当地人民政府应当为其提供平等接受义务教育的条件。具体办法由省、自治区、直辖市规定。

县级人民政府教育行政部门对本行政区域内的军人子女接受义务教育予以保障。

第十三条 县级人民政府教育行政部门和乡镇人民政府组织和督促适龄儿童、少年入学，帮助解决适龄儿童、少年接受义务教育的困难，采取措施防止适龄儿童、少年辍学。

居民委员会和村民委员会协助政府做好工作，督促适龄儿童、少年入学。

第十四条 禁止用人单位招用应当接受义务教育的适龄儿童、少年。

根据国家有关规定经批准招收适龄儿童、少年进行文艺、体育等专业训练的社会组织，应当保证所招收的适龄儿童、少年接受义务教育；自行实施义务教育的，应当经县级人民政府教育行政部门批准。

第三章 学 校

第十五条 县级以上地方人民政府根据本行政区域内居住的适龄儿童、少年的数量和分布状况等因素，按照国家有关规定，制定、调整学校设置规划。新建居民区需要设置学校的，应当与居民区的建设同步进行。

第十六条 学校建设，应当符合国家规定的办学标准，适应教育教学需要；应当符合国家规定的选址要求和建设标准，确保学生和教职工安全。

第十七条 县级人民政府根据需要设置寄宿制学校，保障居住分散的适龄儿童、少年入学接受义务教育。

第十八条 国务院教育行政部门和省、自治区、直辖市人民政府根据需要，在经济发达地区设置接收少数民族儿童、少年的学校(班)。



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